

POSTED:
DATE: 08-05-2024
BY: MA. JULINA B. JUTILO
SR SECRETARY

Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 89TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON JULY 30, 2024

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON OFFICIAL BUSINESS:

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
------------------------	-------	-----------------------------

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Elvie U. Ohao		SB Member
--------------------	-------	-----------

ABSENT:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor/ Acting Municipal Mayor
--------------------------	-------	---

ORDINANCE NO. 10
Series of 2024

**"AN ORDINANCE REQUIRING BUSINESS ESTABLISHMENTS AND OTHER PLACES AND SPACES
CONSIDERED AS HIGH RISK TO INSTALL VIDEO SURVEILLANCE CAMERAS OR CLOSED- CIRCUIT
TELEVISION (CCTV) AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF AND FOR OTHER
PURPOSES"**

Author : Hon. Carmelito E. Valeroso

Co- author: Hon. Renato A. Calañas

Enacted: All Members present

EXPLANATORY NOTE

CCTV has proven time and again in its usefulness in recounting details of criminalities and the identification of perpetrators, thus, making incident and investigation reports speedy and thoroughly. It can incidentally view behavior that has cause or likely to cause danger or damage to any person or property and help in the identification of the perpetrators thereof and therefore can help avert criminalities.

Section 447 of the Local Government Code of 1991, provides that Local Government Unit may maintain peace and order by enacting measures to prevent and suppress lawlessness, disorder, riot, violence, rebellion or sedition and purpose penalties for violation thereof. In the same Code, Section 16 provides that Local Government Units shall exercise its powers expressly granted and those that are necessarily implied therefrom which are necessary and essential to the promotion of the general welfare of its inhabitants.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This ordinance shall be known as CCTV Cameras Ordinance.

SECTION 2. Declaration of Policy- It is hereby declared the policy of the Municipal Government of Carmen, Surigao del Sur to protect and secure the well-being of its constituents from criminalities and lawlessness by enacting sound measures for the maintenance of Peace and Order within its jurisdictions.

It is also the policy of the Municipal Government of Carmen, Surigao del Sur to ensure that the fundamental rights of an individual to privacy is not and will not be unreasonably hampered or curtailed other than what is necessary for the protection of the welfare of the public in general.

Thus, the enactment and implementation of this ordinance, the Municipal Government of Carmen, Surigao del Sur iterates and affirms its adherence and full respect for every individual's fundamental right to privacy by regulating the installation and use of Video Surveillance Camera or CCTV, to ensure that feed locations are limited to public places only and by the provision of proper safeguards against unauthorized viewing and/or disclosure of video recording made in accordance therewith.

SECTION 3. Definition of Terms- For the purpose if this ordinance, the following terms shall mean:

- a) **Business Establishments-** refers to banks, automated teller machines (ATM), credit/lending facilities, and financial institution, gasoline stations, service shops, hotels, inn, lodging houses, homestay, restaurants, bakeshops, computer shops, internet café, specialty stores and facilities, bus terminals, public market, dormitories, and other high-risk places, spaces or establishments as may be identified.
- b) **Closed Circuit Television (CCTV)-** refers to video surveillance cameras use to transmit visual information to a monitor or a number of monitors.
- c) **Feeds-**refers to the visual information or images transmitted by video surveillance cameras to the monitors.
- d) **Feed Location-** refers to the areas that are covered or viewed by video surveillance cameras.



- e) High Risk Areas-refers to the commercial/business establishments and other places and spaces with common business areas where, there is a greater degree of susceptibility to occurrence of accidents or criminalities because of the numerous financial, social or business interactions or places and spaces where critical properties of the municipality are situated.
- f) Monitor- refers to the screens or other devices on which feeds are viewed.
- g) New Establishments- refers to the newly created trading or commercial concerns undergoing application for business permit or the license to operate to the effectivity of this ordinance.
- h) Old Business Establishments- refers to the existing business establishments that have duly secured current business permit or license to operate and are already operating at the time of the effectivity of this ordinance.
- i) Recycling- refers to the process by which records or tapes of feeds or visual information may be erased through the overrun by another or new visual information.
- j) Homestay- a house/building for housing a number of persons for local and foreign tourists.
- k) Designated Security Personnel- refers to the police or civilian personnel authorized to operate or use the particular CCTV cameras.

SECTION 4. Scope of Application and Installation of CCTV Cameras-

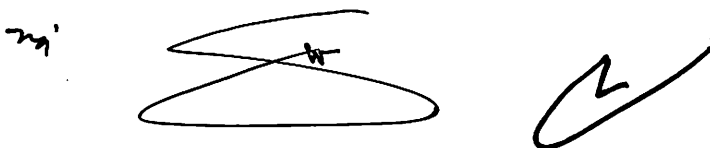
- a) All Business Establishments with Five Hundred Thousand Pesos (Php500,000.00) or more in capital like specialty stores, facilities, restaurants, gasoline station, hardware, grocery and dry goods stores, bakeshops, computer and cellphone shops, internet café, homestays, hotels, inn, pawnshops, and other high-risk areas including industrial and manufacturing establishments.
- b) All government facilities, building and high-risk areas shall likewise install CCTV Cameras in public builders or places where the public frequently converge like public markets, public terminals, plaza or parks, main thorough faces or in entrance and exit points of the municipality as maybe recommend by the PNP Carmen.

SECTION 5. Guidelines for the Installation of CCTV-

All facilities required to install CCTV's pursuant to the provisions of this ordinance shall install and operate CCTV Cameras which shall be maintained in proper working condition/order at all times and based on the recommendation of the PNP Carmen.

SECTION 6. Implementing Office- The Business Permit and Licensing Office (BPLO) and the Carmen Police Station are hereby tasked to assist each other in the implementation of this ordinance.

- a) The BPLO and PNP Carmen shall send duly authorized employees to inspect the premises of all business establishments covered by this ordinance by order of the Municipal Mayor. A special designed sticker shall be posted by the inspection team on the establishments that have complied with.
- b) An establishment found to be in violation hereof should be inspected again Thirty (30) days after the date of the first inspection to determine if it has already complied with. An establishment that fails to comply during inspection shall be subject to the provisions under Section 11 of this ordinance hereof.



- c) Establishments that have already complied with this ordinance shall be inspected twice every year without prior notice to ensure that CCTV cameras are operational and well maintained.
- d) Establishments covered by this ordinance shall post signages on conspicuous places that their establishment are CCTV compliant or CCTV are installed.

SECTION 7. Limitation on its Usage- CCTV cameras and all its feeds shall be solely used in specified instances set forth in this ordinance and use of CCTV cameras by such persons other than the covers and designated security personnel authorized to operate the same in any manner or location or any other purposes is expressly prohibited.

- a) Law Enforcement and Crime Prevention- CCTV Cameras and any all feeds, shall be used for the purpose of providing surveillance in the service of law enforcement and crime preventions within the municipality where there is documented criminal activity.
- b) Traffic Monitoring- CCTV Cameras and any all feeds shall be used for the purpose of traffic monitoring but are not intended to include enforcement of traffic violations. Withstanding the foregoing, the feeds from the CCTV Cameras used for traffic monitoring maybe used for lawful purpose in the event that such CCTV Cameras, while being used for their primary function, incidentally view behavior that has caused or is likely to cause danger to person or property.

SECTION 8. Prohibitions- The feeds shall not be used for the following:

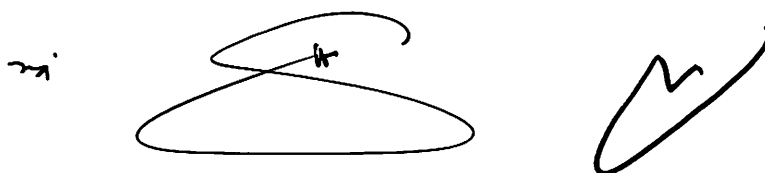
- a) Broadcasting- broadcast by any of the authorized persons prescribed herein of any of the feeds or any of its parts or records on or through any medium other than the monitors.
- b) Viewing- feeds shall be viewed by any person/s other than those expressly authorized herein to view the records of feeds.
- c) Transfer- feeds shall not be transferred to any third party, whether for profit or not.
- d) Reproduction- No person shall be allowed to copy any or all parts of the records of the feeds.

SECTION 9. Preservation of Feeds- Feeds shall be recorded or otherwise stored by owner or owners of institutions or establishments for future use for a period of not more than Fifteen (15) days.

After Fifteen (15) days, the records of the feeds may be recycled or destroyed unless otherwise a proper request for a specific log of any given feed shall have been made as provided for in the proceeding section. In such case the property requested specific records of feeds must turned over in its original and unadulterated form and substance to the proper authority.

SECTION 10. Proper Request for Feeds- Stored or preserved feeds shall be used at any time to satisfy the following;

- a) Any authorized subpoena or any written order of any court of competent jurisdiction, the local PNP, the NBI, CIDG, PDEA or the Municipal Mayor.
- b) Any written request from the Chief Officer of the investigating body or authority calculating the advent of a criminality for proper disposition of crime investigation and report.
- c) Any written request from the duly constituted legislative body or assembly for purposes in aid of legislation.



SECTION 11. Penalty Clause-

A) In Section 4

- 1) New Business Establishments (with capital of Five Hundred Thousand Pesos (Php500,000.00) and above shall not be given a business permit if it has not complied with this ordinance.
- 2) Old Business Establishments (with capital of Five Hundred Thousand Pesos (Php500,000.00) and above shall not be given a renewal of their business permits if they have not complied of this ordinance.

B) Any other violation on the provisions set forth in this ordinance shall be punishable by:

First Offense : Fine of Two Thousand Five Hundred Pesos (Php2,500.00)

Second Offense: Revocation of Mayor's Permit

SECTION 12. Funding- The funds shall be allocated under the MOOE of the Municipal Mayor for implementation of this ordinance.

SECTION 13. Repealing Clause- All ordinances, rules and regulations or parts in conflict of this ordinance are hereby repealed, provided that the rights that are vested upon the effectivity of this ordinance shall not be impaired.

SECTION 14. Separability Clause- Any provisions, sections or part of this ordinance declared as invalid by any court, such judgement shall not affect or impair the remaining provisions, sections or parts hereof which shall continue to be in full force and effect.

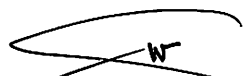
SECTION 15. Effectivity Clause- Upon approval of this ordinance, however there is one (1) year grace period shall be given to an establishment to comply with the provisions of this ordinance.

ENACTED this 30th day of July, 2024 at Carmen, Surigao del Sur.

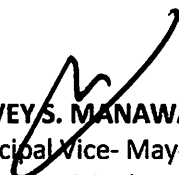
I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice-Mayor/
Presiding Officer

APPROVED:


HARVEY S. MANAWATAO
Municipal Vice- Mayor/
Acting Municipal Mayor